



2026:AHC:43612-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 7642 of 2026

Jatin Kumar Modanwal

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Dheerendra Kumar Srivastava, Sameer Srivastava, Shivanshu Mehta
Counsel for Respondent(s)	: C.S.C., Narendra Kumar Tiwari

Court No. - 1

HON'BLE AJIT KUMAR, J.

HON'BLE SWARUPAMA CHATURVEDI, J.

1. Heard Sri Sameer Srivastava, learned counsel for the petitioner, Sri Narendra Kumar Tiwari, learned panel counsel for respondent nos. 2 and 3, learned Standing Counsel for the State and perused the record.
2. By means of this writ petition filed under Article 226 of the Constitution, petitioner has questioned both the inspection report dated 15.07.2024 as well as the provisional assessment notice issued to him for assessment amount of Rs. 6,12,884/-.
3. It is contended on behalf of the petitioner that not only the inspection report was ex-parte but even the representation filed by the petitioner was not properly entertained by the respondent authorities and resultantly petitioner was rendered remediless to approach this Court to get invoke the extraordinary jurisdiction under Article 226 of the Constitution. It is argued on behalf of the petitioner that under the U.P. Electricity Supply Code, 2005 deserves at least an opportunity to be heard on the point of provisional assessment to dealt with the inquiry report, if any, and raise such objection as he wants to put up in defence.
4. Upon pointed query being made, learned panel counsel for respondent nos. 2 and 3 submits that petitioner was afforded an opportunity and was even permitted to appear before the authority but he failed to do so. He fairly admits that as on date, there is no recovery issued to the petitioner pursuant to the provisional assessment notice as the provisional assessment notice is

yet to be taken into consideration for the purpose of final assessment. He further submits that the petitioner shall have a fair opportunity in the event he approaches the authority and this Court directs for its consideration of the objective and disposal thereof in accordance with law.

5. In view of the above, we **dispose of** this petition with a direction to the petitioner to submit its objection both to the inspection report dated 15.07.2024 as well as consequential provisional assessment notice issued to him for a sum of Rs. 6,12,884/- within a period of four weeks from today and in the event he moves any such application by way of objection to be considered by the authorities and the authorities shall be dealing with the objections raised by the petitioner and should give an opportunity of hearing to the petitioner at the same time and thereafter only take final decision in the matter of assessment under the U.P. Electricity Supply Code, 2005. Appropriate decision shall be taken by the authority within a further period of two months.

6. It is made clear that no coercive action shall be taken by the respondent authorities for a period of three months from today or till the decision is taken by the competent authorities pursuant to the provisional assessment notice, whichever is earlier. We further clarify that the petitioner would be paying the current bills of the electricity due/charges as and when issued by the department.

(Swarupama Chaturvedi,J.) (Ajit Kumar,J.)

February 25, 2026

#Vikram/-